

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

ORDER R5-2019-0062

RESCINDING WASTE DISCHARGE REQUIREMENTS

The California Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board), finds that the Central Valley Water Board adopted the following Orders which are no longer applicable for the reasons shown:

a. FRESNO COUNTY SERVICE AREA #30, EL PORVENIR WASTEWATER TREATMENT FACILITY, FRESNO COUNTY

Waste Discharge Requirements Order 90-262, adopted on 28 September 1990, prescribes requirements for the discharge of wastewater from the El Porvenir Wastewater Treatment Facility (Facility), which serves the unincorporated community of El Porvenir/Three Rocks in Fresno County, approximately 17 miles south of Mendota. The Facility is operated by Fresno County Service Area #30 (Discharger). Central Valley Water Board staff determined that the Facility can be regulated under State Water Resources Control Board's Water Quality Order 2014-0153-DWQ General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems. A Notice of Applicability was issued to the Discharger on 13 March 2019. The Facility was assigned enrollee number 2014-0153-DWQ-R5305. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 90-262.

b. GENE McCLAUGHLIN, ALL ROCK AGGREGATES, CALAVERAS COUNTY

Waste Discharge Requirements Order 89-084, adopted on 26 May 1989, prescribes requirements for discharge of wastewater from All Rock Aggregates in Calaveras County. On 14 January 2019, the owner requested to rescind the WDRs Order 89-084, because the facility has not operated since June 2018 and the owner is permanently closing the business. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 89-084.

c. GRIZZLY RANCH WASTEWATER RECLAMATION FACILITY (FACILITY)

Treated wastewater from the Grizzly Ranch Community Services District's (Discharger) Grizzly Ranch Wastewater Reclamation Facility (Facility) is regulated pursuant to Waste Discharge Requirements (WDRs) Order R5-2011-0081 (NPDES Permit No. CA0085162), adopted by the Central Valley Water Board on 1 December 2011. To date, the Discharger has stored and hauled all wastewater for offsite disposal because influent wastewater flows are too low to operate the Facility. Therefore, no discharges to surface water have occurred. The Discharger plans to retrofit their current wastewater treatment system to treat smaller volumes onsite and eliminate any surface water discharge. The Discharger, in conjunction with Grizzly Ranch Golf Club LLC, obtained coverage under General Order 2014-0153-DWQ-R5301 on 3 April 2019 to use treated effluent as irrigation water at the adjacent golf course owned by Grizzly Ranch Golf Club LLC when retrofits are completed. Therefore, WDRs Order R5-2011-0081 are no longer required.

d. **GRIZZLY RANCH GOLF CLUB LLC (DISCHARGER)**

Water Recycling Requirements (WRRs) Order R5-2007-0001, adopted by the Central Valley Water Board on 25 January 2007, regulates the use of treated wastewater for irrigation at the golf course owned by Grizzly Ranch Golf Club LLC (Discharger). Treated wastewater is produced at the Grizzly Ranch Community Services District's (GRCS D) Grizzly Ranch Wastewater Reclamation Facility. To date, GRCS D has not produced any treated effluent for the Discharger to use as irrigation because influent wastewater flows are too low to operate their existing treatment facility. GRCS D plans to retrofit their current wastewater treatment system to treat smaller volumes onsite and begin producing treated effluent for the Discharger to use as irrigation for the golf course. The Discharger, in conjunction with GRCS D, obtained coverage under General Order 2014-0153-DWQ-R5301 on 3 April 2019 to use treated effluent from GRCS D's Grizzly Ranch Wastewater Reclamation Facility as irrigation water at the Discharger's golf course. Therefore, WRRs Order R5-2007-0001 is no longer required.

e. **KERN COUNTY REEDER TRACT COUNTY SERVICE AREA #39.8, WASTEWATER TREATMENT FACILITY, KERN COUNTY**

Waste Discharge Requirements Order 88-096, adopted on 24 June 1988, prescribes requirements for the Kern County, Reeder Tract County Service Area (CSA) No. 39.8 wastewater treatment facility (WWTF) for the discharge of 0.04 million gallons per day of domestic wastewater to a lined pond and sprayfield. On 28 June 2018, Kern County submitted a Form 200 and Report of Waste Discharge for coverage under the State Water Resources Control Board Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). On 28 February 2019, a Notice of Applicability was issued to Kern County, Reeder Tract CSA 39.8 for coverage under the General Order. The Facility was assigned enrollee number 2014-0153-DWQ-R5303. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 88-096.

f. **KERN COUNTY SERVICE AREAS #51, 39.2, 71.3, 54, 30.2, AND 58; VARIOUS SEPTIC TANK AND/OR LEACH FIELD SYSTEMS; KERN COUNTY**

In the 1970's, the Central Valley Water Board adopted waste discharge requirements for various septic tank and/or leach field systems (systems) owned and operated by private developers in Kern County. In the early 1980's, Kern County adopted Ordinance Code Chapter 14.12 (Ordinance) and agreed to grant County Service Areas the right to maintain, repair, and operate any septic tank and/or leach field system in the County. Pursuant to the Ordinance, the County has been monitoring these systems. On 28 March 2019 and 2 April 2019, Kern County submitted letters requesting the Central Valley Water Board rescind the waste discharge requirements regulating these systems.

Regulation of these discharges has been transferred to Kern County Public Health Services Department, Environmental Health Division under their Local Area Management Plan (LAMP), which was adopted by the Central Valley Water Board on 9 June 2017 (Resolution R5-2017-0068)

Kern County Environmental Health Division will be responsible for the monitoring requirements of these septic tank and/or leach field systems as outlined in the approved LAMP. Therefore, it is appropriate to rescind the following waste discharge requirements:

<u>Order #</u>	<u>Facility Name</u>	<u>Tract No(s)</u>	<u>CSA #</u>
74-18	Hill Top Developers (Los Padres Estates)	3463, 3464, 3465, and 3466	51
74-370	Kern County Service Area No. 39 Zone of Benefit No. 2	3577	39.2
75-023	Reeder Development Corporation (Tract 3695)	3695	71.3
75-116	Shipman-O'Grady Development Company (Tract 3707)	3707	54
78-09	Verdugo Investment Group (Tracts 3906, 3907, 3908, and 3909)	3906, 3907, 3908, and 3909	54
78-13	Charlotte Brock (Tract 3902)	3902	30.2
78-219	Robert Thomason (Tracts 3619, 3620, and 3964)	3619, 3620, and 3964	58

- g. **MEDICINAL CANNABIS CULTIVATION ACTIVITIES (REGIONAL GENERAL ORDER)**
Waste Discharge Requirements General Order R5-2015-0113 for Discharges of Waste Associated with Medicinal Cannabis Cultivation Activities (Regional General Order), adopted by the Central Valley Water Board in October 2015, regulates cannabis cultivation activities in the Central Valley. In October 2017, the State Water Resources Control Board adopted General Waste Discharge Requirements and Waiver of Waste Discharge Requirements for Discharges of Waste Associated with Cannabis Cultivation Activities, Order WQ 2017-0023-DWQ for statewide implementation (Statewide General Order). The Statewide General Order includes the following text: "[t]he State Water Board intends that regulatory coverage under an existing Regional Water Board general order will be terminated by the applicable Regional Water board by **July 1, 2019.**" Central Valley Water Board staff have successfully conducted outreach to Dischargers enrolled under the Regional General Order to ensure transition to the Statewide General Order. Therefore, it is appropriate to rescind Regional General Order R5-2015-0113

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h. HMILLERTON LAKE STATE RECREATION AREA, WASTEWATER TREATMENT FACILITY, FRESNO COUNTY

Waste Discharge Requirements Order (WDRs) 86-224 was issued on 12 December 1986 to the State of California, Department of Parks and Recreation (Discharger), Millerton Lake State Recreation Area (Facility) in Fresno County for a 30-day average daily dry weather discharge of up to 2,830 gallons per day of domestic wastewater. The Discharger submitted a Form 200 and a letter on 6 December 2017 requesting the Facility receive coverage under General Order WQ 2014-0153-DWQ for Small Domestic Wastewater Treatment Systems (General Order).

On 26 March 2019, a Notice of Applicability was issued to the Discharger for coverage under the General Order. The Discharger was assigned enrollee number WQ 2014-0153-DWQ-R5298. Therefore, it is appropriate to rescind Waste Discharge Requirements Order 86-224.

i. OAKLANE MOBILE VILLAGE, LLC., OAKLANE MOBILE HOME VILLAGE WASTEWATER TREATMENT FACILITY, EL DORADO COUNTY

Waste Discharge Requirements Order 90-144, adopted on 25 May 1990, prescribes requirements for the discharge of domestic wastewater for the Oaklane Mobile Home Village Wastewater Treatment Facility in El Dorado County. The facility consists of septic tanks and wastewater ponds. Central Valley Region Water Quality Control Board received a Report of Waste Discharge, dated 10 August 2017, from the Discharger requesting coverage under the Statewide General Order 2014-0153-DWQ for Small Domestic Wastewater Treatment Systems. Regulation of the discharge was enrolled for coverage under General Order WQ 2014-0153DWQ-R5307 on 2 April 2019. Therefore, it is appropriate to rescind Order 90-144.

j. ORWOOD RESORT, INC., ORWOOD RESORT WWTF, CONTRA COSTA COUNTY

Waste Discharge Requirements Order 5-01-099, adopted on 27 April 2001, prescribes requirements for the discharge of domestic wastewater for the Orwood Resort Wastewater Treatment Facility in Contra Costa County. The facility consists of an on-site package treatment plant that discharges to a wastewater pond and land application areas. Central Valley Region Water Quality Control Board received a Report of Waste Discharge, dated 21 July 2017, from the Discharger requesting coverage under the Statewide General Order WQ 2014-0153-DWQ for Small Domestic Wastewater Treatment Systems. Regulation of the discharge was enrolled for coverage under General Order WQ 2014-0153-DWQ-R5308 on 25 April 2019. Therefore, it is appropriate to rescind Order 5-01-099.

k. SHASTA COUNTY SERVICE AREA NO. 13, ALSO KNOWN AS ALPINE MEADOWS AND WHISPERING WOODS ESTATES SUBDIVISION, SHASTA COUNTY

Waste Discharge Requirements Order R5-2005-0025, adopted on 27 January 2005, prescribes requirements for the discharge from Shasta County Service Area No. 13, also known as Alpine Meadows and Whispering Woods Estates Subdivision, Shasta County (Facility). The Facility is comprised of two wastewater systems with each system comprised of a septic tank, lift stations, force main and a leach field disposal system. The Facility is now regulated under Water Quality Order 2014-0153-DWQ (General

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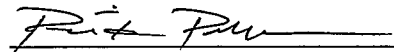
Order) for discharges to land from small domestic systems with a maximum average daily flow of 100,000 gallons or less. Therefore, it is appropriate to rescind Waste Discharge Requirements Order R5-2005-0025.

I. TRIANGLE ENGINEERING COMPANY, NOBLE D. PLANT JR. AND ELEANOR PLANT TRIANGLE AGGREGATE PIT, YUBA COUNTY

Waste Discharge Requirements Order 5-00-106, adopted on 15 June 2000, prescribes requirements for the discharge of sand and gravel processing wastewater to settling ponds. The facility is no longer operating, and the discharge is no longer occurring. Therefore, it is appropriate to rescind Order 5-00-106.

IT IS HEREBY ORDERED that the above Orders are rescinded on the date of this order unless otherwise stated above.

I, PATRICK PULUPA, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region on 7 June 2019


PATRICK PULUPA, Executive Officer